

Rajveer Singh v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 February 2016 · WRIT - C No. 57481 of 2015 · **Disposed of; respondent no.2 to examine the disputed tube-well bill under Clause 6.5, with liberty to seek Clause 6.14 installments.**

HEADNOTE

A consumer disputing a tube-well electricity demand, having already approached the Executive Engineer for rectification, is not entitled to a merits decision of the bill in writ. The disputed bill and arrears are to be dealt with under Clause 6.5 of the U.P. Electricity Supply Code, 2005; respondent no.2 shall examine the request and pass orders in accordance with law within six weeks of a certified copy. Liberty remains to seek installment payment under Clause 6.14 if permissible.

FACTUAL SUMMARY

Rajveer Singh held a tube-well electricity connection from U.P. Power Corporation. He disputed a demand raised in the electricity bill and had already approached the Executive Engineer seeking rectification of that demand and arrears. He then filed Writ-C No. 57481 of 2015 in the Allahabad High Court against the Corporation. After successive listings on 8, 13 and 30 October 2015, a Division Bench heard the petition and disposed of it on 1 February 2016 without examining the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity bill and arrears

HOLDING

A disputed electricity demand on a tube-well connection, where the consumer has already approached the Executive Engineer for rectification, is to be dealt with under Clause 6.5. The High Court directed the petitioner to place a certified copy before respondent no.2, who shall examine the request and issue necessary orders in accordance with law within six weeks, without deciding the bill on merits in writ. ¶ 1

HOLDING-UNIT · UP-2005::6.14

installment payment of disputed demand

HOLDING

It is open to the consumer to seek payment of the disputed demand in installments. The Executive Engineer, if so permissible, shall invoke Clause 6.14 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 The petitioner had already gone to the Executive Engineer for rectification of a disputed tube-well bill; the Court sent the disputed bill and arrears to be dealt with under Clause 6.5 and directed respondent no.2 to examine the request in accordance with law. ¶ 1

installment-payment-clause-6.14 Liberty was reserved to seek installment payment of the disputed demand, with the Executive Engineer to invoke Clause 6.14 if permissible. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE TUBE-WELL ELECTRICITY DEMAND AND ARREARS

Left to respondent no.2 to examine under Clause 6.5 and pass orders in accordance with law. ¶ 1

NOT DECIDED — WHETHER INSTALLMENT FACILITY UNDER CLAUSE 6.14 IS PERMISSIBLE

Left to the Executive Engineer if so permissible. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.